FIRST INFORMATION REPORT (Under Section 154 Cr.P.C. / Section 173 BNSS, 2023)
POLICE STATION: Economic Offences Wing (EOW), Mandir Marg, New Delhi
DISTRICT: New Delhi | YEAR: 2024 | FIR NO: 0412/2024 | DATE & TIME: 14/08/2024 at 11:30 AM

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1. ACTS & STATUTORY SECTIONS CITED:
   (a) Section 420 Indian Penal Code / Sec 318 BNS (Cheating & Dishonestly Inducing Delivery)
   (b) Section 406 Indian Penal Code / Sec 316 BNS (Criminal Breach of Trust)
   (c) Section 468 & 471 Indian Penal Code / Sec 336 & 340 BNS (Forgery for Cheating & Using Forged Document)
   (d) Section 323 & 506 Indian Penal Code / Sec 115 & 351 BNS (Voluntarily Causing Hurt & Intimidation)
   (e) Section 120-B Indian Penal Code / Sec 61 BNS (Criminal Conspiracy)

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2. COMPLAINANT INFORMATION:
   Name: Mr. Vikramaditya Singhania, Managing Director, Apex FinTech Innovations Ltd.
   Registered Office: Cyber City, Tower B, Level 14, Gurugram, NCR.

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3. ACCUSED PERSONS:
   Accused No. 1: Rajesh Malhotra, Managing Director, Zenith Cloud Technologies Pvt. Ltd.
   Accused No. 2: Sameer Verma, Chief Technical Officer, Zenith Cloud Technologies Pvt. Ltd.
   Accused No. 3: M/s Zenith Cloud Technologies Pvt. Ltd., Okhla Industrial Area Ph-III, New Delhi.

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4. STATEMENT OF FACTS AND ALLEGATIONS:
The Complainant company entered into a Master Software Deployment and Escrow Agreement on 15/01/2024 with Zenith Cloud Technologies Pvt. Ltd. for implementing a high-throughput algorithmic core clearing engine. The total agreed contractual consideration was INR 8,50,00,000/- (Eight Crores Fifty Lakhs Only). Under Clause 3.2 of the agreement, Complainant released Milestone Tranche-1 of INR 4,25,00,000/- on 05/02/2024. This disbursement was made strictly upon Accused No. 1 and 2 furnishing an ISO/IEC 27001 Security Audit Certificate and Third-Party Escrow Confirmation purportedly issued by CertiGuard Labs Singapore on 04/02/2024.

In July 2024, when milestone delivery was overdue, an internal technical audit revealed that CertiGuard Labs was a fictitious entity registered in Delaware by a close relative of Accused No. 1. No proprietary source code was ever deposited into the independent third-party escrow repository. Bank verification revealed that within 48 hours of credit, INR 4,10,00,000/- was systematically diverted to personal demat accounts and an affiliated real estate shell company, Malhotra Ventures LLP. On 10/08/2024, when Complainant visited the Okhla premises to demand inspection of code, Accused No. 1 physically assaulted Complainant's officers, caused severe bodily injuries, threatened criminal intimidation, and bolted the office doors to prevent escape.

5. PRIMA FACIE FINDINGS OF INVESTIGATING OFFICER:
The accused persons dishonestly induced the complainant to part with INR 4,25,00,000/- using forged credentials. Ingredients of cheating under Section 420 IPC and criminal breach of trust under Section 406 IPC are attracted.

Investigation endorsed to SI Devendra Chawla, EOW Mandir Marg.
Sd/- Inspector Devendra Chawla, Investigating Officer (EOW Delhi Police).